

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4294

By: Pae

AS INTRODUCED

An Act relating to health insurance; directing fair coverage for individuals with epilepsy; disallowing termination of coverage for individuals diagnosed with epilepsy; providing coverage for devices or surgeries for epilepsy if certain criteria are met; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6060.31 of Title 36, unless there is created a duplication in numbering, reads as follows:

A. All individual and group health insurance policies that provide medical and surgical benefits shall provide the same coverage and benefits to any individual who has been diagnosed with epilepsy as the policy would provide coverage and benefits to an individual who has not been diagnosed with epilepsy.

B. No insurer shall terminate coverage or refuse to renew an individual's health insurance coverage solely based upon the individual's diagnosis of epilepsy.

1 C. To reduce the risk of death from sudden unexpected death in
2 epilepsy (SUDEP), all individual and group health insurance policies
3 that provide medical and surgical benefits shall provide coverage
4 for seizure prevention or protection devices or surgeries or other
5 medical procedures, if prescribed by a physician who is a specialist
6 in the treatment of epilepsy, and it is determined by such physician
7 that such devices are medically necessary.

8 SECTION 2. This act shall become effective November 1, 2026.

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